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County of Santa Clara Registrar of Voters

BALLOT MEASURE REBUTTAL ARGUMENT FORM

This **Ballot Measure Rebuttal Argument Form** must be submitted **for all ballot measure REBUTTAL ARGUMENTS**, with required signatures and author information. The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the Rebuttal argument in Microsoft Word version to candidateservices@rov.sccgov.org. Any errors submitted on the form or Rebuttal argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the rebuttal filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

The author of a rebuttal argument may sign the rebuttal argument or may authorize in writing any other person to author/sign the rebuttal argument. A signed Consent Form is required to authorize a person to author/sign the rebuttal argument who was not an author of the primary argument – Please refer to Section 4, page 5.

Because anyone listed as an author should have the opportunity to review the rebuttal argument, the full text of the rebuttal argument should be attached to all Consent Forms.

Office Use Only

FILED
AUG 18 2026
REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy

Time/Date Stamp

Date of Election: November 3, 2026 General Election
Jurisdiction: Santa Clara County

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): _____

SECTION 1: ARGUMENT INFORMATION

Measure Letter -K-

Select the Type of Argument you are Filing

☑ Rebuttal to the Argument in Favor / Opponent	☐ Rebuttal to the Argument Against / Proponent

SECTION 2: AUTHOR INFORMATION

Declaration Related to Proponent/Opponent Rebuttal Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

Please Select the Applicable Line

☑ **I am an Author of the Opponent Rebuttal Argument** (noted above) for **Measure** -K- being submitted. I oppose this measure.

☐ **I am an Author of the Proponent Rebuttal Argument** (noted above) for **Measure** ____ being submitted. I support this measure.

Rebuttal to Argument in Favor of Measure K
(Milpitas business license tax)

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[Argument starts here]

Stop this huge new tax hike!

Beware: Proponents' claims about "fair shares" and "inequity" completely ignore reality:

Businesses don't pay taxes.

Businesses create jobs, goods, services that *we need and value*. To do so, they have countless expenses and considerations.

Taxes are just one cost of doing business, which owners **must pass along.** To *stay* in business, they pass costs along to…

- Customers (higher prices);
- Employees (lower wages); or
- Shareholders (lower returns on investments — our 401(k)s!)

Proponents' claim that Measure K would benefit small businesses is absurd.

MAYBE a FEW sole proprietorships would forfeit *slightly* less in business license taxes, but **when their larger suppliers are taxed *more*, the small businesses' costs rise accordingly** — thus, the prices *they* charge *us*! (Remember: *Businesses don't pay taxes.*)

Don't trust politicians who neglect "vital city services" like "aging water and sewer lines," then have the nerve to **stoke envy** and **penalize businesses** to cover for their lack of planning.

It's incredible how well businesses' goods, services, and jobs enhance our lives.

But the **cost of living** here is **already *too high***. Gas, groceries, rent — **nothing seems affordable!**

And if Measure K passes, Milpitas business owners, suffering when burdensome taxation costs push customers away, may relocate to cities who won't penalize them.

Don't tax what you want *more* of.

Want more goods and services, priced lower, and jobs, at higher salaries?

Vote NO.

Let's not penalize our job and product providers!

Vote NO!

Visit SCCLP.org and SVTaxpayers.org. Silicon Valley Taxpayer Association's volunteers support taxpayers throughout Santa Clara County.

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[Argument ends here]

REBUTTAL ARGUMENT SIGNER FORM FOR FILER / SIGNER ONLY

The undersigned author of the attached rebuttal argument hereby states that such rebuttal argument is true and correct to the best of their knowledge and belief. You may use as many copies of the FILER / SIGNER ONLY FORM as needed to cover every FILER / SIGNER.

PLEASE NOTE: If the rebuttal argument signer form is handwritten or a revision is unclear, the County of Santa Clara Office of the Registrar of Voters staff will interpret the handwritten information to the best of their abilities. That interpretation is final.

FILER / SIGNER SECTION

The Filer of a Rebuttal Argument is the person or entity that is responsible for filing an argument for or against a measure. The Signer of the Rebuttal Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure, but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE REBUTTAL ARGUMENT

*** Required information.**

I am the **FILER** of the rebuttal argument: ☐ Yes / ☑ No

I am also a **SIGNER** of the rebuttal argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's rebuttal argument is:

*** My Name is:** Elizabeth C. Brierly

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

* Address: [redacted] San Jose, CA 95110

* Email Address: [redacted] Phone Number (cell/direct): [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE REBUTTAL ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ * Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☐ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☑ Other: Sex: Female

*** My SIGNING ORDER** on the Argument text to be published is: ☑ 1 / ☐ 2 / ☐ 3 / ☐ 4 / ☐ 5 *(please check one)*

*** My name as a SIGNER** (signature to be printed with the rebuttal argument) is: Elizabeth C. Brierly
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the rebuttal argument) is: Director, Silicon Valley Taxpayers Association
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE

Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:

[redacted]

RO[redacted] **CUSIGNED SIGNATURES** (signatures will be redacted prior to posting online)